

Court No. - 36

Case :- WRIT - C No. - 30396 of 2010

Petitioner :- Dr. Rajeev Sinha

Respondent :- State Of U.P. & Ors.

Petitioner Counsel :- Amar Deep Sharma, Saumya Misra

Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Sheo Kumar Singh, J.

Hon'ble Rajesh Chandra, J.

As prayed by Smt. Mridul Tripathi learned Advocate who represents the Corporation, put up this matter as fresh on 28.5.2010.

Order Date :- 25.5.2010

Sachdeva

Court No. - 2

Case :- WRIT - C No. - 30396 of 2010

Petitioner :- Dr. Rajeev Sinha

Respondent :- State Of U.P. & Ors.

Petitioner Counsel :- Amar Deep Sharma, Saumya Misra

Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

As prayed, put up on 5.7.2010 as fresh.

Order Date :- 1.7.2010

LA/-

Court No. - 36

Case :- WRIT - C No. - 30396 of 2010

Petitioner :- Dr. Rajeev Sinha

Respondent :- State Of U.P. & Ors.

Petitioner Counsel :- Amar Deep Sharma, Saumya Misra

Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Sheo Kumar Singh, J.

Hon'ble Rajesh Chandra, J.

Learned counsel for the corporation states that he will file counter affidavit on or before the next date fixed.

As prayed, put up this matter on 9.7.2010 as fresh.

Order Date :- 5.7.2010

Prabhat

Court No. - 2

Case :- WRIT - C No. - 30396 of 2010

Petitioner :- Dr. Rajeev Sinha

Respondent :- State Of U.P. & Ors.

Petitioner Counsel :- Amar Deep Sharma, Saumya Misra

Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

Short counter affidavit filed today is taken on record.

Learned counsel for the petitioner prays for and is allowed one week time to file rejoinder affidavit.

Put up as fresh on 19/7/2010.

Order Date :- 9.7.2010

SB

Court No. - 2

Case :- WRIT - C No. - 30396 of 2010

Petitioner :- Dr. Rajeev Sinha

Respondent :- State Of U.P. & Ors.

Petitioner Counsel :- Amar Deep Sharma, Saumya Misra

Respondent Counsel :- C.S.C., Mridul Tripathi

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

Issue notice to respondent nos. 4, 5 and 6.

By this petition, petitioner has prayed for quashing the order dated 22/2/2010, by which the petitioner's application for electric connection was rejected referring to certain dues against Keshav Chand and the letter of the Land Lord that without his permission no connection be given. Counter affidavit has been filed in which it has been stated that petitioner's father was a tenant in the premises in question. He applied for permanent disconnection in the year 2005, but the permanent disconnection bill amounting to Rs. 23,534/- has not been paid. Copy of the bill is enclosed herewith as Annexure CA-1.

Learned counsel for the petitioner submits that the petitioner is ready to pay any outstanding dues against him.

Learned counsel for the petitioner submits that the petitioner is a tenant and is running a clinic on the said premises.

In view of the facts as brought in the counter affidavit, we are of the view that subject to petitioner making payment of outstanding amount of Rs. 23,534/- and submitting an indemnity bond as required under the U.P. Electricity Supply Code, 2005, respondents shall consider the application of the petitioner for electric connection in the premises in dispute.

Detailed counter affidavit be filed within three weeks.

Steps be taken within one week.

List thereafter for admission.

Order Date :- 20.7.2010

SB

Court No. - 39

Case :- WRIT - C No. - 30396 of 2010

Petitioner :- Dr. Rajeev Sinha

Respondent :- State Of U.P. And Ors.

Counsel for Petitioner :- Amar Deep Sharma, Saumya Misra

Counsel for Respondent :- C.S.C., Manish Tandon, Mridul Tripathi

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

List has been revised.

No one appears for the petitioner.

It appears from the pleadings and the prayer made in the writ petition that the petition has become infructuous by efflux of time or the petitioner has no interest to further prosecute the case.

Accordingly, the writ petition is ***dismissed as infructuous.***

Interim order, if any, stands vacated.

Order Date :- 25.5.2023

Vipasha